



CHAPTER ccvii.

An Act to empower the corporation of Bath to construct additional waterworks and for other purposes.

A.D. 1903.

[11th August 1903.]

WHEREAS the mayor aldermen and citizens of the city of Bath (in this Act called “the Corporation”) are the owners of waterworks and supply water within the city of Bath and in the parishes of Bathampton Batheaston Charlcombe Swainswick Twerton and Weston adjacent thereto under and subject to various Acts of Parliament including the following local Acts and Orders confirmed by Parliament (that is to say):—

An Act passed in the ninth year of the reign of Her late Majesty Queen Victoria entitled “An Act for more effectually supplying with water the city and borough of Bath and several parishes and places adjacent thereto” (in this Act called “the Act of 1846”):

The City of Bath Act 1851 :

9 & 10 Vict.
c. ccxx.

The Bath Act 1870 :

14 & 15 Vict.
c. civ.
33 & 34 Vict.
c. liii.

The Orders relating to the city confirmed by—

The Local Government Board’s Provisional Orders Confirmation (Aberdare &c.) Act 1875 ;

38 & 39 Vict.
c. clxxv.

The Local Government Board’s Provisional Orders Confirmation (Bath &c.) Act 1876 ;

39 & 40 Vict.
c. cci.

The Local Government Board’s Provisional Orders Confirmation (No. 6) Act 1887 ;

50 & 51 Vict.
c. cxi.

The Local Government Board’s Provisional Orders Confirmation (No. 10) Act 1888 ;

51 & 52 Vict.
c. cxxxiv.

The Local Government Board’s Provisional Orders Confirmation (No. 12) Act 1892 ; and

55 & 56 Vict.
c. cexxlii.

The Local Government Board’s Provisional Orders Confirmation (No. 8) Act 1899 ;

62 & 63 Vict.
c. cxii.

A.D. 1902. all which Acts and Orders are in this Act referred to as "the
— recited Acts":

And whereas the supply of water from the present waterworks of the Corporation is inadequate to meet the present and growing demands of the inhabitants within the water limits of the Corporation and it is expedient that the Corporation should be empowered to make and maintain the additional works by this Act authorised and that further provision should be made in regard to their water undertaking:

And whereas there are several companies and persons owning waterworks and supplying water within the limits within which the Corporation are empowered to supply water and it is expedient to empower the Corporation to acquire the waterworks and undertakings of such companies and persons:

And whereas the objects of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and those estimates are as follows:—

For and in connection with the purchase of lands and waters and interests in lands and waters under the provisions of this Act (including compensation) - - - - -	£15,000
For and in connection with the construction of Work No. 1 authorised by this Act - - -	£2,800
For and in connection with the construction of Works Nos. 2 to 9 authorised by this Act - -	£24,200

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas an absolute majority of the whole number of the council at a meeting held on the twenty-first twenty-third and twenty-fourth days of October one thousand nine hundred and two after ten clear days' notice by public advertisement of such meeting and of the purposes thereof in the Bath Herald a local newspaper published and circulating in the city such notice being in addition to the ordinary notices required for summoning such meeting resolved that it was desirable to promote the Bill for this Act:

And whereas such resolution was published twice in the said Bath Herald and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number

of the council at a further special meeting held in pursuance of a similar notice on the twentieth day of January one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill in Parliament: A.D. 1903.

And whereas the owners and ratepayers of the city by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the respective clerks of the peace for the counties of Somerset and Gloucester and are in this Act respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PRELIMINARY.

1.—(1) This Act may be cited as the Bath Corporation Water Act 1903. Short and collective titles.

(2) The Act of 1846 may be cited as the Bath Corporation Water Act 1846.

(3) The recited Acts and this Act may be jointly cited as the Bath Corporation Water Acts 1846 to 1903.

2. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely):— Incorporation of general Acts.

(1) The Waterworks Clauses Acts 1847 and 1863 except—

(A) The words “with the consent in writing of the owner
“ or reputed owner of any such house or of the agent of
“ such owner” in section 44 of the Waterworks Clauses Act 1847;

(B) Sections 75 to 82 of the Waterworks Clauses Act 1847 with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and section 83 relating to accounts:

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(2) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

(3) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof (except so much of those provisions as relates to the occupation and use of lands for the purpose of taking earth or soil by side cuttings therefrom or for the purpose of obtaining materials therefrom for the construction or repair of the railway or accommodation works and except sections 30 and 31) and in such provisions for the purposes of this Act "the railway" means so much of the conduits authorised by this Act as will not be constructed in a highway and "the centre of the railway" means the centres of so much of such conduits as aforesaid.

Interpretation.

3. The several words and expressions to which by the Acts incorporated with this Act meanings are assigned have in this Act the same respective meanings unless there is something in the subject or context repugnant to such construction:

And in this Act unless the context otherwise requires—

"The Corporation" means the mayor aldermen and citizens of the city of Bath;

"The city" means the city of Bath;

"The council" means the council of the city;

"The town clerk" means the town clerk of the city;

"The city fund" and "the city rate" mean respectively the city fund of the city and the rate leviable in the city under section 144 of the Municipal Corporations Act 1882;

"Statutory security" means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security (not being annuity certificates rentcharges or securities payable to bearer) authorised by or under any Act of Parliament (passed or to be passed) of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 other than securities of the Corporation.

WORKS AND LANDS.

Power to make water-works.

4. Subject to the provisions of this Act the Corporation may in the counties of Gloucester and Somerset and in the lines and

situations and upon the lands delineated on the deposited plans and described in the deposited book of reference and according to the levels shown on the deposited sections make and maintain the following works shown on the deposited plans and sections (that is to say) :—

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Work No. 1 A reservoir to be situate in the parish of Marshfield on the north side of Oakford Lane leading from Batheaston to Oakford Farm in the field numbered 875 on the 1/2500 Ordnance map (1898 edition) of the said parish :

Work No. 2 A conduit consisting of one or more lines of pipes to be situate in the parishes of Saint Catherine and Marshfield commencing in the field numbered 78 on the 1/2500 Ordnance map (1886 edition) of the parish of Saint Catherine and terminating by a junction with the conduit next hereinafter described in the field numbered 859 on the 1/2500 Ordnance map (1886 edition) of the parish of Marshfield :

Work No. 3 A conduit consisting of one or more lines of pipes to be situate in the parish of Marshfield commencing in the field numbered 824 on the 1/2500 Ordnance map (1886 edition) of the said parish and terminating at the reservoir hereinbefore described :

Work No. 4 A conduit consisting of one or more lines of pipes to be situate in the parish of Marshfield commencing in the site of an unused pond in Cherrywood numbered 898 on the 1/2500 Ordnance map (1882 edition) of the said parish and terminating at the reservoir hereinbefore described :

Work No. 5 A conduit consisting of one or more lines of pipes to be situate in the parish of Marshfield commencing in the field numbered 940 on the 1/2500 Ordnance map (1898 edition) of the said parish and terminating by a junction with Work No. 4 hereinbefore described in the field numbered 868 on the same map :

Work No. 6 A conduit consisting of one or more lines of pipes to be situate in the parish of Batheaston commencing in Bannerdown numbered 132 on the 1/2500 Ordnance map (1898 edition) of the said parish and terminating by a junction with Work No. 9 hereinafter described in the field numbered 54 on the same map :

Work No. 7 A conduit consisting of one or more lines of pipes to be situate in the parish of Batheaston commencing at or near to the waste weir or overflow channel of the most westerly of the Batheaston upper reservoirs of the Corporation

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and terminating by a junction with Work No. 9 hereinafter described in the field numbered 162 on the 1/2500 Ordnance map (1894 edition) of the said parish :

Work No. 8 A conduit consisting of one or more lines of pipes to be situate in the parish of Batheaston commencing on Batheaston Common (Solisbury Hill) numbered 390 on the 1/2500 Ordnance map (1892 edition) of the said parish and terminating by a junction with Work No. 9 hereinafter described in the field numbered 214 on the same map :

Work No. 9 A conduit consisting of one or more lines of pipes to be situate in the parishes of Marshfield Batheaston and Swainswick and in the city commencing at the reservoir hereinbefore described and terminating at the northerly side of the Beechen Cliff Reservoir of the Corporation in the city.

Power to
make subsi-
diary works.

5. The Corporation in addition to the foregoing works may upon any lands for the time being belonging to them or over or in respect of which they may have or acquire rights or easements make and maintain all such cuts channels catch-waters tunnels adits pipes conduits culverts drains sluices by-washes shafts wells bores water-towers overflows waste-water-channels gauges filter-beds tanks banks hydrants meters dams embankments piers walls bridges approaches engines pumps machinery buildings appliances apparatus and conveniences in connection with or subsidiary to the before-mentioned works or any or either of them but nothing in this section shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

Power to
deviate.

6. In the construction of the works authorised by this Act the Corporation may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding four feet upwards and to any extent downwards Provided that except for the purpose of crossing over a stream no part of the conduits shall be raised above the surface of the ground unless and except so far as is shown on the deposited sections.

Power to
take lands
and waters.

7. Subject to the provisions and for the purposes of this Act the Corporation may enter on take and use all or any of the lands delineated upon the deposited plans and described in the deposited

book of reference and they may for the purposes of their water undertaking take collect impound use divert and appropriate the waters known as the Drummond Springs at the west of Saint Catherine's Church in the parish of Saint Catherine the Watts Springs in the valley and on the hillside between Ayford Farmhouse and Motcombe Farmhouse the Oakford Springs in the Oakford Valley both in the parish of Marshfield the County Boundary Springs near to Rodney Farmhouse and in the valley below Rodney Farm through which the county boundary between Gloucestershire and Somersetshire passes the Wayfield Springs in the hollow between the village of Batheaston and Solisbury Hill including the springs on the eastern slope of Solisbury Hill both being in the parish of Batheaston and all such springs streams and waters as will or may be intercepted by the works or subsidiary works authorised by this Act or as may be found in on or under any of the lands acquired by the Corporation under this Act or for the time being belonging to them or over or in respect of which they may acquire easements rights or privileges of water under and subject to the provisions of the section of this Act whereof the marginal note is "Persons under disability may grant easements &c."

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8.—(1) The Corporation may in lieu of acquiring any lands for the purpose of the conduits or other works authorised by this Act acquire such easements and rights in such lands as they may require for the purpose of making maintaining using cleansing repairing renewing and enlarging the said works and of obtaining access thereto and may give notice to treat in respect of such easements and rights and may in such notice describe the nature thereof and the several provisions of the Lands Clauses Acts (inclusive of those with regard to limited owners and to arbitration and the summoning of a jury) shall apply to such easements and rights as fully as if the same were lands within the meaning of those Acts.

Power to
acquire ease-
ments only.

(2) Provided that as regards any lands taken or used by the Corporation for the purpose of such works where they are respectively laid underground the Corporation shall not (unless they give notice to treat for such lands and not merely for easements or rights therein) be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall at all times after the completion of the works have the same rights of passing over such lands for all purposes of or connected with the use or enjoyment of the adjoining lands as if such lands had not been taken or used by the Corporation.

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(3) Provided also that nothing in this section contained shall authorise the Corporation to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

Easements only to be taken from commons.

9. In lieu of acquiring any lands from the commons known as Batheaston Common (Solisbury Hill) and Bannerdown Common for the purposes of this Act the Corporation shall acquire easements or rights only in such lands for the purpose of making maintaining using cleansing repairing renewing and enlarging the works authorised by this Act and of obtaining access thereto and the provisions of subsections (1) and (2) of the last preceding section of this Act shall apply accordingly.

Period for compulsory purchase of lands.

10. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Period for completion of works.

11. If the works authorised by this Act are not completed within seven years from the passing of this Act then on the expiration of that period the powers by this Act granted for the making thereof respectively or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed. Provided that the Corporation may extend enlarge alter reconstruct renew or remove any of their works and plant and in the case of the conduits authorised by this Act lay down additional lines of pipes as and when occasion may require.

Power to purchase additional lands by agreement.

12. The Corporation in addition to any other lands acquired by them in pursuance of this Act may by agreement purchase take on lease acquire and hold further lands for the purposes of this Act or of their water undertaking but the quantity of lands held by the Corporation in pursuance of this section shall not at any time exceed thirty acres. Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands nor erect any buildings thereon except offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their undertaking :

Provided also that the Corporation shall not sink any wells or abstract water from any springs or streams in or upon any lands acquired under this section in the rural district of Chipping Sodbury without the consent of the Chipping Sodbury Rural District Council.

13. The Corporation may purchase or take on lease dwelling-houses for persons employed by them for the purposes of their water undertaking and may erect and maintain dwelling-houses for such persons upon any lands for the time being belonging to the Corporation for the purposes of the said undertaking and (subject to the terms of the lease) upon any lands for the time being leased to the Corporation for the purposes of the said undertaking.

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Dwelling-houses for persons in Corporation's employ.

14.—(1) The Corporation shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

Restriction on taking houses of labouring class.

(2) If the Corporation acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

(3) For the purposes of this section—

The expression “house” means any house or part of a house occupied as a separate dwelling; and

The expression “labouring class” means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

15. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this

Persons under disability may grant easements &c.

A.D. 1903. — behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
sell lands.

16. Subject to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands so far as such provisions are in each case applicable the Corporation may sell lease and dispose of any lands acquired by them under this Act and not for the time being required for the purposes thereof.

Reservation
of water
rights &c.
on sale.

17. The Corporation on selling any lands acquired by them in connection with their water undertaking and not required for the purposes of that undertaking may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Power to
purchase
lands and
exercise
powers for
protection of
waters and
waterworks.

18. For the purpose of protecting any of their waters and waterworks against pollution contamination nuisance encroachment or injury the Corporation may purchase take on lease and acquire any lands in over or through which any waters which the Corporation are for the time being authorised to intercept collect impound take use divert or appropriate arise or flow and may in and upon any such lands construct and lay down drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing in or over such lands or necessary or proper for preventing the water which the Corporation are empowered to take from being polluted fouled contaminated or discoloured and the Corporation may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road within or adjoining the said lands subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

Power to
agree as to
drainage of
lands &c.

19. The Corporation may make and carry into effect agreements with the owners lessees or occupiers of any lands in over or through which any waters which the Corporation are for the time being authorised to intercept collect impound take use divert or appropriate arise or flow with reference to the execution by the Corporation or such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of

them or for more effectually collecting conveying and preserving the purity of such waters. A.D. 1903.

20.—(1) The Corporation may make byelaws for preventing the pollution fouling or contamination of the water which they are authorised to take for the purposes of any of their waterworks and may by such byelaws prescribe the construction maintenance and use of proper drains sewers and works and make provision for the prevention of any act or thing tending to pollution of the water.

Byelaws for preventing pollution of water.

(2) The byelaws made under this section shall be in force over the lands situate within such distance not exceeding fifteen hundred yards from any work from which water is obtained by the Corporation as may be prescribed by the byelaws.

(3) All byelaws made under this section shall be subject to the approval of the council of every district comprising any part of the area within which it is proposed that they shall be in force Provided that such approval shall not be necessary where in the opinion of the Local Government Board it has been unreasonably withheld.

(4) The Corporation shall pay compensation to the owners of and other persons interested in any lands in respect of which byelaws shall be made under the provisions of this section whose legal rights shall be injuriously affected by the restrictions imposed by such byelaws and such compensation shall be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

21.—(1) For the purpose of sinking any well or constructing enlarging extending repairing cleansing or examining any aqueduct conduit or reservoir authorised by this Act the Corporation may cause the water in such well aqueduct conduit or reservoir to be temporarily discharged into any available stream or watercourse.

Temporary discharge of water into streams.

(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by the exercise of such power the amount of compensation to be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

22.—(1) The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any streets or roads of the conduits by this Act authorised and of any discharge pipes telephone or telegraph posts wires conductors or apparatus which the Corporation may and

Applica-
tion of
Waterworks
Clauses Act
1847 to con-
duits dis-
charge pipes
and tele-
phones.

A.D. 1903. — which they are hereby authorised to erect or lay down for the purposes of their water undertaking.

(2) Provided that no telephonic or telegraphic apparatus made and maintained under the authority of this Act shall be used for the purpose of transmitting telegrams in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Power to lay mains within and without city.

23. In addition to any other powers for the time being vested in them the Corporation shall have the powers of a local authority under section 54 of the Public Health Act 1875 with respect to the carrying of water mains within and without their district. Provided that in the exercise of such powers the Corporation shall be subject to the provisions of the Public Health Acts so far as they are applicable (other than the provisions relating to the borrowing of money and to the repayment thereof) in the same manner and to the same extent as if such powers were conferred by those Acts.

Works to form part of undertaking and recited Acts to apply.

24. The works by this Act authorised shall for all purposes be deemed part of the water undertaking of the Corporation and the provisions of the recited Acts so far as the same are applicable and subject to the provisions of this Act shall extend and apply to the said works.

Power to purchase private waterworks.

25. The Corporation may purchase by agreement any waterworks for the supply of water in any area within which the Corporation are authorised to supply water and any water or right to take or convey water for the purposes of any such waterworks and any such waterworks so purchased shall be deemed to be part of the water undertaking of the Corporation.

PROTECTIVE PROVISIONS.

For protection of Somerset County Council and Bath Rural District Council.

26. If any road repairable by the Somerset County Council or the Bath Rural District Council (in this section called “the county council” and “the district council” respectively) is broken up by the Corporation for the purposes of their undertaking or any bridge culvert drain pipe or other property of the county council or district council respectively is damaged by the Corporation or damage shall by diversion of traffic or in any other way be caused the Corporation shall repair such road bridge culvert drain pipe or other property to the reasonable satisfaction of the county council or district council respectively and if the same is not so repaired the county council or the district council respectively may cause the necessary repairs to be done and may charge the reasonable costs thereof against the Corporation and the same shall be a debt due from the Corporation

to the county council or district council as the case may be A.D. 1903.
 Provided that nothing contained in this section shall deprive the
 county council or district council respectively of any rights or
 relieve the Corporation of any obligations conferred or imposed
 upon them respectively by such of the provisions of the Waterworks
 Clauses Acts 1847 and 1863 with respect to breaking up of streets
 as are incorporated in this Act.

27. The following provisions for the protection of the Bath Rural District Council shall apply and take effect:—

For pro-
 tection of
 Bath Rural
 District
 Council.

- (1) If by reason of the works by this Act authorised there shall not remain or flow to and through any lands or fields situate in the rural district of Bath below the points where the several springs or streams are proposed to be taken collected impounded and diverted under the powers of this Act which now have or enjoy a frontage thereto or are watered thereby such a quantity of water as may be necessary for domestic and agricultural (including market gardening) purposes the Corporation shall and they are hereby required whenever it may be practicable so to do to furnish from time to time and at all times so much water as may be necessary for such purposes free from all rates costs and charges in respect of such water and to lay down at their own cost all such pipes conduits troughs cisterns taps and apparatus as may be requisite for conveying and continuing the same by gravitation and shall keep a continuous supply in such troughs and in case the same shall not be practicable then the Corporation shall pay to the owners and occupiers of such lands full compensation for the loss and injury they may from time to time respectively sustain by reason of such taking collection impounding and diversion of such water in manner provided by the Lands Clauses Acts herewith incorporated But nothing in this section shall be deemed to oblige the Corporation to furnish thereunder at any time any greater quantity of water than that which at the passing of this Act is available from the several streams aforesaid for such domestic and agricultural purposes in or on the lands or fields aforesaid and this section shall not apply to any house erected after the passing of this Act:
- (2) In case the Corporation shall take any spring or stream of water now used for the purpose of a water supply to the Batheaston Village School a free supply of water to the extent of fifteen thousand gallons per quarter shall be given

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by the Corporation for the use of such school Any water used by the school beyond this limit shall be paid for at the rates for the time being charged by the Corporation for water supplied by meter :

- (3) In case the Corporation shall abstract water from any spring or stream of water now used for domestic purposes by the occupiers of Northend Cottages Batheaston and sufficient water shall not be left in such spring or stream to afford as good a supply as that now enjoyed the Corporation will provide at a reasonably convenient place (and under regulations to prevent abuse or waste to be from time to time made by the Corporation) a stand-pipe and allow water to be used therefrom for the purpose of providing or supplementing the supply for sanitary and domestic purposes of the occupiers of the said cottages :
- (4) The Corporation shall not in any day of twenty-four hours take from the springs to be acquired under the authority of this Act such a quantity of water as will reduce the flow of the Batheaston Brook on that day at the gauge to be provided in pursuance of the provisions of this section hereinafter contained to less than one hundred and fifty thousand gallons :
- (5) For the purpose of measuring the quantity of water so to be allowed to flow in the Batheaston Brook the Corporation shall cause to be erected a sufficient gauge to be made to the reasonable satisfaction of the Bath Rural District Council or of an engineer to be appointed by them and the said gauge shall be fixed at a point at or near to the existing gauge below the point at which the Wayfield Springs flow into the brook and shall for ever after be maintained in a proper state of repair by and at the expense of the Corporation and to the reasonable satisfaction of the said rural district council or of such engineer :
- (6) The rural district council shall at all reasonable times have the right of access to the said gauge for the purpose of ascertaining the state of repair and efficiency thereof and of gauging measuring and ascertaining the quantity of water from time to time passing over or through the same :
- (7) If at any time the Corporation take any water from the said springs contrary to the provisions of subsection (4) of this section they shall for every day during which they take water contrary to those provisions forfeit and pay to the rural district council the sum of ten pounds :

- (8) In the event of any dispute or difference between the Corporation and the said rural district council as to the sufficiency or accuracy of the said gauge or as to its state of repair and condition or as to any other matter at any time arising under this section the same shall be settled and determined by an engineer or other fit person to be appointed by the President of the Institution of Civil Engineers on the application of either of the parties.

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28. Notwithstanding anything in this Act the provisions of this section shall apply for the protection of the Chipping Sodbury Rural District Council (in this section called "the district council") unless otherwise agreed in writing between the district council and the Corporation (that is to say):—

For protection of
Chipping
Sodbury
Rural District Council.

- (1) If the water from any spring or stream in the parish of Marshfield in the district of the district council used as a water supply for the parish shall be taken away or diminished by the works authorised by this Act the Corporation shall forthwith and at their own cost provide free of charge a sufficient and proper supply of water equal to the quantity (if any) so taken away:
- (2) The Corporation shall so far as practicable construct maintain and keep the aqueduct and all works in connection therewith for conveying the water through the watershed of the said parish watertight in all respects:
- (3) If any road repairable by the district council is broken up by the Corporation for the purposes of their undertaking or any bridge culvert drain pipe or other property of the district council is damaged by the Corporation the Corporation shall repair such road bridge culvert drain pipe or other property to the reasonable satisfaction of the district council and if the same is not so repaired the district council may cause the necessary repairs to be done and may charge the reasonable costs thereof against the Corporation and the same shall be a debt due from the Corporation to the district council. Provided that the rights or obligations conferred or imposed by this section shall be in addition to and not in substitution for any rights or obligations conferred or imposed by such of the provisions of the Waterworks Clauses Acts 1847 and 1863 with respect to breaking up streets as are incorporated in this Act:

A.D. 1903.

(4) At any time after the Corporation have commenced to supply water from the reservoir (Work No. 1) authorised by this Act and so long as they shall supply water from that reservoir they shall upon being required to do so by the district council supply to the district council for supplying the town of Marshfield such equal daily quantity of water in bulk not exceeding forty thousand gallons in any one day as the district council shall by three months' notice in writing to the Corporation to be given from time to time at or before the usual quarterly days in any year specify and require and agree to take and such water shall be supplied by the Corporation to the district council at the reservoir (Work No. 1) authorised by this Act at such price and upon such terms as may be agreed between the parties or failing agreement as may be settled by arbitration as in this section provided and any expenses to be incurred in connection with the pumping of the water and the conveying thereof to the town of Marshfield shall be borne by the district council Provided that the Corporation shall not be under any obligation to supply water when prevented by frost drought or any circumstance over which they have no control or during necessary repairs or renewals of any of their works and that a supply shall not be afforded to the district council if and so long as it interferes with the supply of water for domestic purposes within the limits of the Corporation for the supply of water :

(5) Any differences which may from time to time arise between the district council and the Corporation with reference to this section or to anything to be done thereunder shall be settled by arbitration in accordance with the provisions of the Arbitration Act 1889.

For protection of
Great West-
ern Railway
Company.

29. For the protection of the Great Western Railway Company (hereinafter referred to as "the Great Western Company") the following provisions shall apply :—

(1) Notwithstanding anything in this Act contained or shown upon the deposited plans and sections the Corporation shall not enter upon take or use any part of the railways canals navigations works lands or property of the Great Western Company except so far as may be necessary for carrying Work No. 9 under their railway and over and across the Kennet and Avon Canal of the Great Western Company and the said Work No. 9 shall only be constructed in

accordance with plans and sections submitted to and reasonably approved by the principal engineer of the Great Western Company :

- (2) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this Act upon across under or adjoining or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the Great Western Company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the Great Western Company the same shall be done under the superintendence and to the reasonable satisfaction of the said engineer of the Great Western Company and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by him in writing :
- (3) All such works shall be done by and at the expense of the Corporation except as in this section otherwise provided who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the Great Western Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Corporation Provided always that should the Great Western Company elect so to do where any mains or pipes require to be laid under or across any level crossing of their railway they may themselves lay the same at the costs charges and expenses of the Corporation :
- (4) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways bridges level crossings approaches viaducts stations works lands or property and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon :
- (5) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the leakage or failure of any such mains pipes or works in under or near to any railway bridge level crossing embankment cutting approach viaduct station land works or property of the Great Western Company the

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Corporation shall make compensation to the Great Western Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided :

- (6) The Corporation shall acquire only such an easement across over or under any of the railways canals navigations works lands or property of the Great Western Company as may be necessary for constructing or maintaining any of the works of the Corporation and shall pay to the Great Western Company for any such easement to be acquired by them such sum either annual or otherwise as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement and for the purposes of such arbitration the easement so to be taken shall be deemed to be lands so far as respects the proceedings for the acquisition thereof and also for the purposes of such arbitration Provided that this subsection shall not apply to the construction or maintenance of any works in a public highway :
- (7) If the Great Western Company at any time or times hereafter require (of which they shall be the sole judges) to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the works of the Corporation may have been constructed or laid the Great Western Company may on giving to the Corporation fourteen days' notice in writing under the hand of their secretary or general manager and in case of emergency upon giving the longest notice practicable divert support or carry the said works of the Corporation across over or under their lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works :
- (8) Except as in this section otherwise provided any dispute or difference which may arise between the Great Western Company and the Corporation with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be

appointed by the Board of Trade on the application of the Great Western Company and the Corporation or either of them. A.D. 1903.

30. For the protection of the owner for the time being (hereinafter in this section called "the owner") of the estate called "the Rocks" situate in the parish of Marshfield in the county of Gloucester (hereinafter in this section called "the Rocks Estate") the following provisions shall have effect (that is to say) :—

For protection of owner of the Rocks.

- (1) Except as regards Work No. 1 the Corporation shall in lieu of acquiring any lands for the purpose of the conduits or other works authorised by this Act acquire only such easements and rights in such lands as they may require and as shall be necessary for the purpose of making maintaining using cleansing repairing and renewing the said works and of obtaining access thereto :
- (2) The Corporation shall only acquire for the purpose of Work No. 1 such land as shall be necessary for the construction of a reservoir of the dimensions shown on the deposited plans and sections and not larger and also such land not exceeding half an acre adjoining in a position selected by the owner as may be necessary for the deposit of spoil :
- (3) The Corporation shall not by Work No. 4 diminish the existing supply received into the tank at the Hophouse from springs in the Oakford Valley and if and whenever such supply shall be so diminished the Corporation shall thenceforth at their expense discharge into the tank or into some other tank to be constructed by them in an equally convenient position and at such a level that the water can gravitate to it from the works of the Corporation such a quantity of water as shall maintain a constant and permanent flow through the tank of not less than one hundred thousand gallons per day :
- (4) If the Corporation by their Work No. 3 shall diminish or interfere with any part of the existing supplies of water to the Ayford Farmhouse outbuildings and cattle yards they shall at their own expense provide and maintain a sufficient and constant supply to such farmhouse outbuildings and cattle yards as ample in quantity and as convenient as that at present enjoyed Provided always that it shall not be obligatory on the owner to show that any such diminution as referred to in subsections (3) and (4) of this section has been caused by the works of the Corporation but on the

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other hand it shall be competent for the Corporation to show that any such diminution has not been occasioned by the construction or user of the works authorised by this Act :

- (5) The right of the Corporation to take by means of Work No. 6 any water from the existing springs on Bannerdown near Rodney Farmhouse shall be subject to the right of the occupiers for the time being of Rodney Farm to a full supply of water for the purposes of the house and farm from such springs and the Corporation shall at their own charges provide convenient means of taking such water at the farmyard or as near thereto as conditions admit of that being done by gravitation from the Work No. 6 at the level shown on the deposited sections at the commencement of Work No. 6 :
- (6) The right of the Corporation to take by means of Works Nos. 4 and 5 any water from the springs now used as a water supply for Oakford Farmhouse and farm shall be subject to the right of the occupiers for the time being of Oakford Farm to a full supply of water for the purposes of the house and farm from such springs and the Corporation shall at their own charges provide convenient means for taking such water at the farmyard :
- (7) The Corporation shall at their own expense and so far as their existing or proposed works will render possible provide and maintain where necessary sufficient drinking troughs for cattle (in addition to existing troughs) for the use of the Ayford Farm the Oakford Farm the North End Farm and the Rodney Farm :
- (8) The Corporation shall at their expense when occasion shall arise provide and maintain so far as can be done by gravitation a sufficient supply for all future buildings which may be erected on the Rocks Estate for agricultural purposes or purposes in connection with the management of the estate in positions in which a supply therefor could have been provided by the owner from existing springs upon the estate if the powers conferred upon the Corporation by this Act had not been granted and shall at the expense of the owner provide and maintain a similar supply for all future buildings of any description erected in similar positions and without charge for the water :
- (9) The powers contained in the section of this Act whereof the marginal note is "Byelaws for preventing pollution of water" shall not be exercised as regards the Rocks Estate without the consent of the owner but the owner shall take

reasonable care to prevent pollution of the springs acquired by the Corporation by acts other than in the ordinary course of agriculture :

- (10) The Corporation shall pay to the owner for the said land and easements and for all water which by means of works authorised by this Act shall be taken from the Rocks Estate and for injuriously affecting the lands of the owner by the execution of the powers of this Act such a price as shall be agreed upon or as failing agreement shall be settled by arbitration under the Lands Clauses Acts and as regards the price for the water it shall be based on a rate per one thousand gallons but if capitalised it shall be on a yearly average over not less than seven years :
- (11) For the purpose of ascertaining the quantity of water abstracted from the Rocks Estate the Corporation shall provide and maintain Venturi meters or other suitable measuring gauges with recording apparatus to be fixed at or near the proposed reservoir (Work No. 1) :
- (12) The owner shall use all reasonable care to prevent water supplied gratuitously under this Act from being wasted or misapplied and shall allow the Corporation all reasonable facilities for inspecting fittings and guarding against waste :
- (13) The Corporation shall during the construction of the works take all precautions reasonably possible for preventing damage to the Rocks Estate or to the game thereon by trespassing or otherwise :
- (14) If any dispute shall arise between the owner and the Corporation as to the construction of this section or as to anything to be done or omitted to be done by the Corporation thereunder the same shall be referred to arbitration :
- (15) Nothing in this Act or in the incorporated Acts contained shall take away lessen or prejudice the rights of the owner under section 10 of the Bath Act 1870 and except as is by this Act expressly provided nothing in this Act or in the incorporated Acts contained shall take away lessen or prejudice any of the estates rights interests powers or authorities of the owner :
- (16) If the works on the Rocks Estate authorised by this Act shall not be completed within three years from the commencement of the works then on the expiration of that period the powers by this Act granted for the making thereof or otherwise in relation thereto shall cease except as to such of them as shall be then completed.

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Confirmation
of scheduled
agreement.

31. The agreement dated the twentieth day of March one thousand nine hundred and three and made between the Corporation of the one part and the Honourable Clara Emily Charlotte Paley of the other part as set forth in the Schedule to this Act is hereby confirmed and made binding on the parties thereto respectively and upon the heirs and assigns of the Honourable Clara Emily Charlotte Paley.

For protec-
tion of mill
occupiers on
River Avon.

32. For the protection of the occupiers for the time being of the mills and premises on the River Avon known respectively as the Batheaston Flour Mills the Bathampton Flour Mills the Twerton Upper (Cloth) Mill the Weston Logwood Mills the Weston Lower (Cloth) Mill the Twerton Lower (Clothing) Mill the Saltford Brass Mills and the Keynsham Brass Mills (all of whom are in this section included in the expression “the mill occupiers”) the following provisions shall have effect (that is to say):—

- (1) The quantity of water which the Corporation may take intercept collect impound use divert or appropriate under the provisions of this Act shall not in any one year from the first January to the thirty-first December exceed two hundred million gallons in the aggregate and of that quantity not more than sixty million gallons shall be taken during the months of June July August and September nor shall more than five hundred thousand gallons be taken in any one day of twenty-four hours between midnight and midnight during those four months :
- (2) The Corporation shall construct and for ever after maintain suitable meters or measuring gauges over or through which all waters taken diverted or appropriated by them under this Act shall flow and the same shall be open at all times to the inspection and examination of the mill occupiers Such meters or gauges shall be constructed and maintained in such manner and in such situations as may from time to time be agreed between the Corporation and the mill occupiers or (failing agreement) determined by an engineer appointed by the President of the Institution of Civil Engineers :
- (3) In case any such meter or gauge shall not at any time be in a state of efficiency or shall not properly record the quantity of water taken the Corporation shall as soon as practicable after becoming aware thereof put such meter or gauge in a state of efficiency and shall for every day on which they fail to comply with the provisions of this

subsection forfeit and pay to the occupier of each mill A.D. 1903.
hereinbefore mentioned the sum of five pounds : —

- (4) Should the Corporation on any such day as aforesaid during the said months of June July August and September take or appropriate under the provisions of this Act a greater quantity of water than five hundred thousand gallons then and in such case the Corporation shall for every day on which such excessive taking occurs forfeit and pay to the occupier of each mill hereinbefore mentioned the sum of five pounds and should the Corporation in any such year as aforesaid take or appropriate more than two hundred million gallons then and in such case the Corporation shall for every thousand gallons so taken in excess pay to the occupier of each mill hereinbefore mentioned the sum of sixpence :
- (5) For the purposes of this section a record shall be kept showing the quantity of water which has been taken and each of the mill occupiers shall at all reasonable times have access to such record :
- (6) The Corporation shall at least one month before commencing to take divert or appropriate any water under the powers of this Act give notice in writing of their intention to do so to each of the mill occupiers.

33. The Corporation shall not open or break up any road along or across which any tramway of the Bath Electric Tramways Limited is laid for the purpose of making or maintaining any conduit authorised by this Act except subject to the provisions of sections 32 and 33 of the Tramways Act 1870 nor shall they open or break up any road along or across which any light railway of the Bath and District Light Railways Company is laid for the same purpose except subject to the provisions of section 46 of the Bath and District Light Railways Order 1901 and the provisions of those sections respectively shall apply accordingly Provided always that the Corporation shall be under no obligation to reinstate the part of any such tramway or light railway which may have been broken up or interfered with as aforesaid but shall pay to the owner of such tramway or light railway the full amount of all expenses incurred by such owner in reinstating the part of the said tramway or light railway so broken up or interfered with and the amount of such expenses shall in case of difference be determined in the manner provided by the said sections.

For protection of
Bath Electric
Tramways
Limited and
Bath and
District
Light Rail-
ways Com-
pany.

A.D. 1903.

SUPPLY OF WATER.

Rates payable by owners of small houses.

34. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Corporation so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner. Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Supply by meter in certain cases.

35.—(1) The Corporation shall not be bound to supply with water otherwise than by measure any building used partly as a dwelling-house and partly as a warehouse or for any trade or manufacturing purpose for which water is required or any inn or hotel.

(2) Where the Corporation supply with water any building referred to in this section by measure they shall on the application of the occupier of such building supply the same with sufficient water for domestic purposes at a rate not exceeding one shilling for every thousand gallons and the money payable to the Corporation under this section shall be recoverable in the same manner as rates due to the Corporation for water. Provided that the Corporation shall not be compelled to afford to any premises a supply of water by measure for a less sum in any one quarter of a year than the amount of the rate which would have been payable in respect of such premises for a supply of water otherwise than by measure.

Contracts for supplying water in bulk.

36. The Corporation may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the limits of this Act to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon. Provided that such supply shall not be given except with the consent of any company or person supplying water under Parliamentary authority within the district to be supplied and of the local authority of that district nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of the Corporation for the supply of water.

FINANCE.

A.D. 1903.

37.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest money for the following purposes (that is to say):—

Power to borrow.

- (A) For and in connection with the purchase of lands and waters and interests in lands and waters under the provisions of this Act (including compensation) the sum of fifteen thousand pounds;
 - (B) For and in connection with the construction of Work No. 1 authorised by this Act the sum of two thousand eight hundred pounds;
 - (c) For and in connection with the construction of Works Nos. 2 to 9 authorised by this Act the sum of twenty-four thousand two hundred pounds;
 - (d) For paying the costs charges and expenses of this Act as hereinafter provided the sum requisite for that purpose;
- and with the consent of the Local Government Board such further moneys as the Corporation may require for any of the purposes of their water undertaking.

(2) In order to secure the repayment of money borrowed under this section and the payment of interest thereon the Corporation may mortgage or charge the revenue of their water undertaking and if they think fit as a collateral security the city fund and city rate.

38. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Certain regulations of Public Health Act as to borrowing not to apply.

39. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others. Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

Mode of raising money.

40. The following sections of the Public Health Act 1875 shall extend and apply to mortgages granted under this Act (that is to say):—

Provisions of Public Health Act as to mortgages to apply.

- Section 236 (Form of mortgage);
- Section 237 (Register of mortgages);
- Section 238 (Transfer of mortgages).

A.D. 1903.
Periods for
discharge of
loans.

41. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as “the prescribed period”) following (that is to say):—

As to moneys borrowed for the purposes (A) and (B) mentioned in the section of this Act the marginal note whereof is “Power to borrow” (within the limited sum there mentioned) within sixty years from the date or dates of the borrowing of the same :

As to moneys borrowed for the purposes (C) mentioned in the said section (within the limited sum there mentioned) within forty years from the date or dates of the borrowing of the same :

As to moneys borrowed for the purpose (D) in the said section mentioned within five years from the date or dates of the borrowing of the same :

As to moneys borrowed with the consent of the Local Government Board within such period not exceeding sixty years as they may think fit to sanction.

Mode of
payment off
of money
borrowed.

42. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by such instalments and partly by a sinking fund and the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the date of borrowing the sum in respect of which the payment is made.

Sinking
fund.

43.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the

A.D. 1903. Corporation shall increase the payments to such extent as the Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed the Corporation may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

Protection of lender from necessity of inquiry.

44. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by the Corporation of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Corporation not to regard trusts.

45. The Corporation shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall be sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or

transfer of such loan or security or any part thereof or interest thereon not entered in their register. A.D. 1903.

46.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than five hundred pounds in the whole. Appointment of receiver.

(2) The application for the appointment of a receiver shall be made to the High Court.

47. If the Corporation pay off any money borrowed by them under this Act otherwise than by instalments or by means of a sinking fund or out of money received on capital account not being borrowed moneys they may re-borrow the same but all moneys so re-borrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the money originally borrowed and the obligations of the Corporation with respect to the repayment of the loan and to the provision to be made for such repayment shall not be diminished by reason of such re-borrowing. Power to re-borrow.

48.—(1) The town clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the town clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be Return to Local Government Board as to repayment of debt.

A.D. 1903. — recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Application
of money
borrowed.

49. All moneys borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and to which capital is properly applicable.

Expenses of
execution of
Act.

50. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made may be defrayed by the Corporation out of the revenue of their water undertaking and so far as such revenue may be insufficient out of the city fund.

Proceeds of
sale of sur-
plus land to
be treated as
capital.

51. Any capital moneys received by the Corporation on the sale or lease of any lands in pursuance of the powers of this Act shall be distinguished as capital in the accounts of the Corporation and may be applied in or towards defraying any expenditure for which the Corporation have by virtue of this Act for the time being unexhausted borrowing powers and capital moneys so received and not so applied shall be applied in discharge of any moneys borrowed by the Corporation under this Act but shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board and borrowed money discharged by the application of such moneys shall not be re-borrowed.

Audit of
accounts.

52. The provisions of the Municipal Corporations Acts relating to the keeping and auditing of accounts and the accounts kept of

sums of money received and paid under those Acts shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act. A.D. 1903.

MISCELLANEOUS.

53.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875. Inquiries by
Local Government
Board.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

54.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the city requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication. Authentica-
tion and
service of
notic s.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the city may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

55. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Corporation under the powers of this Act. Confirmation
of byelaws.

56. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as Recovery of
penalties.

A.D. 1903. are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Costs of Act. **57.** All the costs charges and expenses preliminary to and of and incidental to the preparing applying for and obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation and may be paid in the first instance out of any moneys in their hands but shall be charged to and recouped by the moneys which the Corporation are authorised to borrow under the powers of this Act.

THE SCHEDULE.

A.D. 1903.

AN AGREEMENT made the 20th day of March 1903 between the MAYOR ALDERMEN AND CITIZENS OF THE CITY OF BATH (hereinafter called "the Corporation") of the one part and the Honourable CLARA EMILY CHARLOTTE PALEY of St. Catherine's Court in the parish of Batheaston widow (hereinafter together with her heirs and assigns called "the owner") of the other part.

WHEREAS the Corporation are promoting a Bill in Parliament (which Bill together with the intended Act is hereinafter described as "the Bill") to empower them to construct additional waterworks and for other purposes and seek power thereby to take certain lands of the owner and otherwise to affect her property :

And whereas the owner has taken steps to oppose the Bill but has agreed to withdraw her opposition and not to oppose the Bill on the terms hereinafter contained :

Now it is hereby agreed as follows :—

1. The Corporation shall not take any lands of the owner under the Bill but the owner shall at the request of the Corporation grant to the Corporation the easement or right of laying a line of pipes from the point marked A to the point marked B on the plan hereunto annexed in the line marked red on the said plan and in the levels shown on the deposited sections for the purpose of drawing or taking water for their waterworks together with the right to enter upon the lands of the owner to inspect clean and repair such line of pipes and the owner shall not at any time hereafter interfere with the flow of water to the said line of pipes save so far as may be reasonably necessary in the ordinary course of agriculture and shall not save under the provisions of this agreement make any claim for compensation for the abstraction of water thereby from the springs situated on her lands.

2. The Corporation shall when they lay such line of pipes provide St. Catherine's Court Farm with a sufficient supply by means of such line of pipes of the water abstracted thereby for ordinary farming dairying and household purposes and shall in like manner provide a supply of water to two cottages of the owner now situated thereon and to any other cottages which may from time to time be erected within a distance of one hundred yards from the said line of pipes for the occupation of labourers employed on the said farm and shall provide three troughs of sufficient size in fields numbered 58 66 and 78 on the said plan and keep the same supplied with water such several supplies to be given free of charge.

The owner will use all reasonable precautions to prevent the water supplied under this clause from being wasted or misapplied and will give

A.D. 1903. the Corporation all reasonable facilities for ascertaining that no waste is taking place.

3. The Corporation for the purpose of providing a sufficient supply of water for household and fire protection purposes to St. Catherine's Court shall within six months after the passing of the Bill—

- (A) Lay a 6-inch main commencing by a junction with the existing 18-inch main of the Corporation at the point marked E and terminating at the point marked D on the said plan and from that point a 4-inch rising main terminating in the tank at point C on the said plan :
- (B) Lay a 4-inch main from the point marked D to the point marked G on the said plan :
- (C) Lay a 4-inch main commencing in the tank at point marked C hereinafter mentioned to St. Catherine's Court for fire purposes only and terminating at the point marked F on the said plan :
- (D) Lay a $\frac{3}{4}$ -inch lead service pipe from the rising main to the Court between the points D and G for the purposes of domestic supply :
- (E) Provide and fix at the points F and G 2 $\frac{1}{2}$ -inch screw-down hydrants of a pattern to be approved by the owner and fix sluice valves on the rising main at the point marked E and on the outlet main from the tank at the point marked C on the said plan respectively :
- (F) Construct at the said point marked C a covered tank properly constructed with a capacity of ten thousand gallons and shall for ever thereafter keep such mains and tank in repair and shall keep the main to the tank and the tank charged with water whenever the level of water in Monkswood Reservoir permits and shall keep the main to St. Catherine's Court charged with water at all times and shall by means of such works give a supply of water to St. Catherine's Court and shall make no charge for the water used for domestic and other purposes unless the same exceeds three hundred and sixty-five thousand gallons in any year or for the water used in case of fire whatever be the amount so used.

4. The Corporation shall charge and the owner shall pay at the rate of eightpence per one thousand gallons for any water supplied for domestic purposes and purposes other than fire protection under the last preceding article over and above three hundred and sixty-five thousand gallons in any year and may place a meter on the owner's lands at a convenient place and from time to time inspect repair and renew such meter but such meter shall be fixed so that in case of fire the full yield of the 4-inch main should be available.

5. The reservoir Work No. 1 proposed to be authorised by the Bill shall not be constructed so as to have a greater capacity than five hundred thousand gallons and the embankments shall not at any point be more than the height shown by the deposited plans.

6. The lines of pipes Works 2 and 3 and the said Reservoir No. 1 shall be completed within three years after the passing of the Bill and if not so completed shall not thereafter be constructed and such work shall be carried

out so as to cause as little inconvenience and annoyance to the owner or her tenants as practicable and the Corporation shall so far as the nature and urgency of the work permit consult the convenience of the owner as to the time for carrying out such work.

7. Where the Corporation break up the lands of the owner for the purposes of the Bill or of this agreement they shall forthwith to the reasonable satisfaction of the owner restore and make good the surface of the said lands and replace the turf and shall place no fence or other erection above the level of the ground.

8. The Corporation shall not exercise the powers proposed to be given by the clause of the Bill whereof the marginal note is "Byelaws for preventing pollution of water" on or in respect of the lands of the owner but the owner shall not pollute foul or contaminate or wilfully suffer to be polluted fouled or contaminated save so far as may be in the ordinary course of husbandry any water which the Corporation are authorised to take under the Bill as modified by this agreement.

9. The Corporation shall pay to the owner and to her lessees or tenants compensation to be determined failing agreement by arbitration under the Lands Clauses Acts—

- (A) For such easements or rights as are hereby agreed to be granted and for surface damage done in exercise of such easement;
- (B) For loss or damage sustained by reason of the abstraction of water from her lands whether from surface springs or by the diversion or abstraction of underground water;
- (C) For loss or damage sustained as riparian owner on St. Catherine's Brook by reason of the lessening of the flow of water therein owing to the works proposed to be authorised by the Bill whether by the abstraction of water from the brook and the tributaries thereof or by the diversion or abstraction of underground water:

Provided nevertheless that in consideration of the other provisions of this agreement the owner shall make no claim for compensation for injurious affection to St. Catherine's Court by the loss of sources of water supply therefor through the exercise of the powers of the Bill. Provided also that in estimating the compensation payable to the owner or her lessees or tenants under this clause regard shall be had to the benefits conferred by clauses 2 and 3 of this agreement.

10. The Corporation shall use their best endeavours to secure that this agreement shall be scheduled to the Bill and the owner shall not directly or indirectly oppose the Bill save so far as may be necessary to secure the scheduling of this agreement.

11. The Corporation shall pay the legal and engineering costs of the owner in relation to this agreement or in relation to her intended opposition to the Bill or in relation to any instrument or grant or other document or proceeding necessary to carry this agreement into effect.

12. If any difference shall arise between the Corporation and the owner or in respect of this agreement it shall be referred to arbitration and save in

A.D. 1903. — case of an arbitration to determine the amount of compensation the Arbitration Act 1889 shall apply to such arbitration.

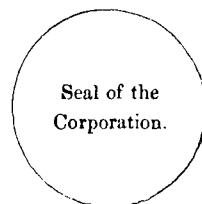
13. This agreement is made subject to the approval of Parliament and to any alterations which Parliament may think fit to make herein but in the event of any material alteration being made herein either party may withdraw from this agreement.

In witness whereof the Corporation have hereunto set their common seal and the said Clara Emily Charlotte Paley has hereunto set her hand and seal the day and year first above written.

The common seal of the Corporation }
was hereunto affixed in the presence
of

B. H. WATTS

Town Clerk.



Signed sealed and delivered by the }
above-named Clara Emily Charlotte } CLARA E. C. PALEY.
Paley in the presence of

RICHARD STRUTT

Rayleigh House Chelsea.



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